

CHAPTER II

CONDITIONS OF SERVICE AND EMPLOYMENT

3. Conditions of employment : (1) In every establishment **Appointment** of workers and other matters incidental thereto shall be regulated in accordance with the provisions of this Chapter:

Provided that any establishment may have its own employment rules, but no such rules shall be less favourable to any worker than the provisions of this Chapter.

(2) The service rules in any establishment as mentioned in the proviso to sub-section (1) shall be submitted for approval by the employer of such establishment to the Chief Inspector who shall, within six months of the receipt thereof make such order therein as he deems fit.

(3) No service rules as mentioned in sub-section (2) shall be put into effect except with the approval of the Chief Inspector.

(4) Any person aggrieved by the order of the Chief Inspector may, within thirty days of the receipt of the order, may prefer appeal to the Government and the order of the Government on such appeal shall be final.

(5) Nothing provided in sub-section (2) shall apply to an establishment which is owned by or under management or control the Government.

4. Classification of workers and period probation: (1) Workers employed in any establishment shall be classified in any of the following classes according to the nature and condition of work; namely—

- (a) apprentice,
- (b) badli,
- (c) casual,
- (d) temporary,
- (e) probationer, and
- (f) permanent.

(2) A worker shall be called an apprentice if he is employed in an establishment as a learner, and is paid an allowance during the period of his training.

(3) A worker shall be called a badli if he is employed in an establishment in the post of a permanent worker or of a probationer during the period who is temporarily absent.

(4) A worker shall be called a casual worker if his employment in an establishment is casual nature.

(5) A worker shall be called a temporary worker if he is employed in an establishment for work which is essentially of temporary nature, and is likely to be finished within a limited period.

(6) A worker shall be called a probationer if he is provisionally employed in an establishment to fill a permanent vacancy in a post and has not completed the period of his probation.

(7) A worker shall be called a permanent worker if he is employed in an establishment on a permanent basis or if he has satisfactorily completed the period of his probation in the establishment.

(8) The period of probation for a worker whose function is clerical nature shall be six months and for other workers such period shall be three months:

Provided that in the case of a skilled worker, the period of probation may be extended by an additional period of three months if, for any circumstances, it has not been possible to determine the quality of his work within the first three months' period of his probation.

(9) If any worker, whose service has been terminated during his probationary period, including the extended period, is again appointed by the same employer within a period of three years, he shall, unless appointed on a permanent basis, be deemed to a probationer and the period or periods of his earlier probation shall be counted for determining his total period of probation.

(10) If a permanent worker is employed as a probationer in a new post, he may, at any time during the probationary period, be reverted to his old permanent post.

5. Letter of Appointment and Identity Card : No employer shall employ any worker without giving such worker a letter of appointment and every such employed worker shall be provided with an identity card with photograph.

6. Service book : (1) Every employer shall, at his own cost, provide a service book for every worker employed by him.

(2) Such service book shall be kept in the custody of the employer.

(3) Before employing a worker, the employer shall require from him the previous service book if the worker claims that he has been previously in employment under any other employer.

(4) If such worker has any service book, it shall be handed over to the new employer by him and shall be kept in the custody of the employer, for which a receipt shall be given to him.

(5) If such worker has no service book, a service book shall be provided under sub-section (1).

(6) If the worker desires to keep and maintain a duplicate copy of his service book, he may do it at his own cost.

(7) The employer shall hand over the service book to the worker on the termination of the workers' service with him.

(8) If the service book handed over to the worker or the duplicate thereof maintained by him is lost by the worker, the employer shall provide him with a duplicate service book at the cost of the worker.

(9) Nothing in this section shall apply to an apprentice, badli or casual worker."

7. Form of Service Book : (1) The service book shall be of such size and in such form as may be prescribed by rules and a photograph of the worker shall be affixed to it.

(2) The service book shall contain the following particulars, namely:

- (a) name of the worker, name of mother and father and address of the worker,
(in appropriate case name of husband/wife shall be written)
- (b) date of birth,
- (c) particulars necessary for identification,
- (d) name and address of the employer under whom previously employed, if any,
- (e) period of employment,
- (f) occupation or designation,
- (g) wages and allowances (if any),
- (h) leave availed, and
- (i) conduct of the worker.

8. Entries in the service book : The employer shall at the commencement of the employment and during the continuance of the same, make such entries therein from time to time as are required by this Chapter and the Rules and both the employer and the worker shall sign the entries as they are made.

9. Workers register and supply of tickets and cards : (1) The employer of every establishment shall maintain a workers register for all workers and to be available for the Inspector at all times during working hours for inspection.

(2) The workers register shall contain the following : (a) the name and date of birth of each worker in the establishment ;

- (b) date of appointment ;
- (c) the nature of work ;
- (d) the periods of work fixed for him ;
- (e) the intervals for meals and rest to which he is entitled ;
- (f) the days of rest to which he is entitled ;
- (g) the group, if any, in which he is included ;
- (h) where his group works on shifts, the relay to which he is allotted ; and
- (i) such other particulars as may be prescribed by rules ;

(3) If the Inspector is of opinion that any muster roll or register maintained a part of the routine of an establishment gives in respect of all or any of the workers in the establishment the particulars required under sub-section (2), he may, by order in writing, direct that such muster roll or register shall, to the corresponding extent, be maintained in place of, and be treated as, the register of workers, in that establishment.

(4) The Government may make rules prescribing the form of the register of workers, the manner in which it shall be maintained and the period for which it shall be preserved.

(5) The employer shall supply Tickets or cards for every worker in the following manner:

- (a) every permanent worker shall be provided with a permanent departmental ticket showing his number ;
- (b) every badly worker shall be provided with a badly card on which shall be entered the day on which he has worked and which shall be surrendered if he obtains permanent employment ;
- (c) every temporary worker shall be provided with a temporary ticket which shall be surrendered on his leaving the job or getting a permanent employment ;
- (d) every casual worker shall be provided with a casual card on which shall be entered the days on which he has worked in the establishment ; and
- (e) every apprentice shall be provided with an apprentice card which shall be surrendered if he obtains permanent employment or if he leaves his training.

10. Procedure for leave : (1) A worker who desires to obtain leave of absence shall apply to the employer for the same in writing stating his leave address therein.

(2) The employer or his authorised officer shall issue orders on the application within seven days of the application or two days prior to the commencement of leave applied for, whichever is earlier ;

Provided that, if , due to urgent reasons the leave applied for is to commence on the date of application or within three days thereof the order shall be given on the same day.

(3) If the leave asked for is granted, a leave pass shall be issued to the worker.

(4) If the leave asked for is refused or postponed, the fact of such refusal or postponement, and the reasons thereof shall be communicated to the worker before the date on which the leave was expected to be commenced. and shall also be recorded in a register to be maintained by the employer for the purpose.

(5) If the worker, after convincing of leave, desires an extension thereof, he shall, if such leave is due to him, apply sufficiently in advance before the expiry of the leave to the employer who shall, as far as practicable send a written reply either granting or refusing extension of leave to the worker to his leave-address.

11. Payment of wages for unavailed leave : If the services of a worker, to whom any annual leave is due, is dispensed with whether as a result of retrenchment, discharge, removal, dismissal, termination, retirement or by reason of his resignation before he has availed of any such leave, the employer shall pay his wages in lieu of the unavailed leave at the rate he is entitled to the payment of wages during the period of leave in accordance with the provisions of this Act.

12. Stoppage of work : (1) The employer may, at any time, in the event of fire, catastrophe, breakdown of machinery, or stoppage of power supply, epidemics, civil commotion or any other cause beyond his control, stop any section or sections of the establishment, wholly or partly for such period as the cause for such stoppage continues to exist.

(2) In the event of such stoppage occurring at any time beyond working hours, the employer shall notify the workers affected, by notice posted on the notice board in the section or department concerned or at a conspicuous place in such establishment before the work is due to begin next.

(3) In the notice mentioned in sub-section (2) direction shall be given indicating as to when the work will be resumed and whether such workers are to remain at their place of work at any time before the actual resumption.

(4) In the event of such stoppage occurring at any time during working hours, the workers affected shall be notified, as soon as practicable, in the manner specified in sub-section (2) indicating as to when the work will be resumed and whether such workers are to leave or remain at their place of work.

(5) In the case where workers have been directed to stay at their place of work following such stoppage, the workers so detained may not be paid for the period of such detention if it does not exceed one hour, and the workers so detained shall be paid wages for the whole period of such detention if it exceeds one hour.

(6) If the period of stoppage of work does not exceed one working day, a worker, unless entitled to wages under sub-section (5), may not be paid any wages.

(7) If the period of stoppage of work continues for more than a working day, a worker affected, other than a casual or badli worker, shall be paid wages for day or day by which it will exceed one working day.

(8) If the period of stoppage of work extends beyond three working days, the workers may be laid-off in accordance with the provisions of section 16.

(9) A lay-off mentioned in sub-section (8) shall be effective from the day of stoppage of work and any wage paid to a worker for the first three days may be adjusted against the compensation payable for such subsequent layoff.

(10) For the piece-rate workers affected, their average daily earning in the previous month shall be taken to be the daily wage for the purpose of the sub-section

13. Closure of establishment : (1) The employer may, in the event of an illegal strike by any section or department of any establishment, close down either wholly or partly such section or department and the workers participated in the illegal strike shall not be paid any wages for such closure.

(2) Where by reason of closing down of any section or department of any establishment under sub-section (1), any other section or department is so affected that it is not possible to keep that section or department open, that section or department may also be closed down and the workers affected thereby shall be paid wages as in the case of lay-off for a period of three days and thereafter they may not be paid any wages for such closure.

(3) The fact of such closure shall be notified by the employer, as soon as practicable, by notice posted on the notice board in the section or department concerned or at a conspicuous place in the establishment and the fact of resumption of work, following such closure, shall likewise be notified.

14. Calculation of 'one year', 'six months' and 'wages' in certain cases : (1) For the purpose of this Chapter, a worker who, during the preceding twelve calendar months, has actually worked in an establishment for not less than two hundred and forty days or one hundred and twenty days as the case may be, shall be deemed to have completed 'one year' or 'six months' respectively of continuous service in the establishment.

(2) For the purpose of calculation of the number of days on which a worker actually worked in an establishment as mentioned in sub-section (1) the days on which—

- (a) the days during which he has been laid-off ;
- (b) he has been on leave with or without wages due to illness or accident ;
- (c) he has been on legal strike or out of work due to illegal lock-out ;
- (d) in the case of female worker, she has been on maternity leave not exceeding sixteen weeks; shall be counted.

(3) For the purpose of calculation of compensation under section 19, 20 or 23 or wages under section 22, 23, 26 or 27 'wages' shall mean the average of the basic wages and dearness allowance and ad-hoc or interim pay, if any, paid to the worker during the period of twelve months immediately preceding the date of his retrenchment, dismissal, removal, discharge, retirement or termination of employment, as the case may be.

15. Restrictions of application of sections 12, 16, 17, and 18. : Notwithstanding anything contained elsewhere in this Chapter, the provisions of sections 12, 16, 17, and 18 shall not apply to any establishment in which five or more workers are not employed, or were not employed on any day of the preceding twelve months.

16. Right of laid-off workers for compensation : (1) Whenever a worker, other than a badli or casual worker, whose name is borne on the muster-rolls of an establishment and who has completed not less than one year of continuous service under the employer is laid-off, he shall be paid compensation by the employer for all days during which he is so laid-off, except for such weekly holidays as may intervene.

(2) The amount of compensation as mentioned in sub-section (1) shall be equal half of the total basic wages and dearness allowance, and ad-hoc or interim pay, if any, and the full amount of housing allowance, if any, that would have been payable to him had he not been so laid-off.

(3) A badli worker whose name is borne on the muster-rolls of an establishment shall cease to be regarded as 'badli' for the purpose of this section, if he has completed one year of continuous service in the establishment.

(4) No worker shall, unless there is an agreement to the contrary between the worker and the employer, be entitled to the payment of compensation under this section for more than forty-five days during any calendar year.

(5) Notwithstanding anything contained in sub-section (4), if during a calendar year a worker is laid-off for more than forty-five days, whether continuously or intermittently, and the lay-off after the expiry of the first forty-five days comprises period or periods of fifteen days or more, the worker shall, unless there is an agreement to the contrary between the worker and the employer, be paid compensation for all the days comprised in every subsequent period of lay-off for fifteen days or more.

(6) The amount of compensation as mentioned in sub-section (5) shall be equal to one-fourth of the total basic wages and dearness allowance, and ad-hoc or interim pay, if any, and the full amount of housing allowance, if any.

(7) In any case where, during a calendar year, a worker is to be laid-off after the first forty-five days as aforesaid, for any continuous period of fifteen days or more, the employer may, instead of laying-off such a worker, retrench him under section 20.

17. Muster-roll for laid-off workers : Notwithstanding that the workers employed in an establishment have been laid-off, the employer shall maintain a muster-roll, and provide for the making of entries therein by or for the laid-off workers whom may present themselves for work at the establishment at the appointed time during normal working hours.

18. Laid-off workers not entitled to compensation in certain cases : (1) Notwithstanding anything contained elsewhere in this Chapter, no compensation shall be payable to a worker who has been laid-off—

(a) if he refuses to accept on the same wages, any alternative employment not requiring any special skill or previous experience, in the same establishment for which he has been laid-off, or in any other establishment belonging to the same employer and situated in the same town or village or situated within a radius of eight kilometres from the establishment ;

(b) if he does not present himself for work at the establishment at the appointed time during normal working hours at least once a day if so required by the employer.

(2) For the purpose of sub-section (1) (b), every laid-off worker who presents himself for work at the establishment at the time appointed for the purpose during normal working hours on any day and is not given employment by the employer within two hours of his so presenting himself, shall be deemed to have been laid-off for that day within the meaning of this section.

(3) If a laid-off worker who presents himself for work as mentioned in sub-section (2), instead of being given employment at the commencement of any shift for any day, is asked to present himself for the purpose during the second half of the shift for the day, and if he so presents himself, he shall be deemed to have been laid-off only for one-half of that day, the other half being treated as on duty, irrespective of the fact whether he is given work or not.

19. Death benefit : If a worker dies while in service after a continuous service of not less than three years, his nominee or in the absence of any nominee, his dependant shall be paid by the employer a compensation at the rate of thirty days wages for every completed year of service, or for any part thereof in excess of six months or gratuity, if any, whichever is higher and in addition

to any other benefit to which the deceased worker would have been entitled had he retired from service:

Provided that if such worker is covered by any compulsory insurance scheme of the establishment, or, if any compensation is payable for such death under Chapter XII, the worker shall be entitled to whichever is higher.

20. Retrenchment : (1) A worker employed in an establishment may be retrenched from service on the ground of redundancy.

(2) No worker who has been in continuous service for not less than one year under an employer shall be retrenched by the employer unless—

- (a) the worker has been given one month's notice in writing, indicating the reasons for retrenchment, or the worker has been paid in lieu of such notice, wages for the period of notice ;
- (b) a copy of the notice is sent to the Chief Inspector or any other officer authorised by him and also to the collective bargaining agent in the establishment, if any ; and
- (c) she has been paid, compensation which shall be equivalent to thirty days wages or gratuity for every completed year of service if any, whichever is higher.

(3) Notwithstanding anything contained in sub-section (2), in the case of retrenchment of a worker under section 16(7), no notice as mentioned in sub-section (2) (a) shall be necessary ; but the worker so retrenched, shall be paid fifteen days wages in addition to the compensation or gratuity, as the case may be, which may be payable to him under sub-section (2) (c).

(4) Where any worker belonging to a particular category of workers is to be retrenched, the employer shall, in the absence of any agreement between him and the worker in this behalf, retrench the worker who was the last person to be employed in that category.

21. Re-employment of retrenched workers : Where any number of workers are retrenched, and the employer proposes to take into her employ any worker within a period of one year from the date of such retrenchment, she shall give an opportunity to the retrenched workers belonging to the particular category concerned by sending a notice to their last known addresses, to offer themselves for employment, and the retrenched workers who so offer themselves for re-employment shall have preference over other retrenched workers, each having priority according to the length of her service under the employer.

22. Discharge from service : (1) A worker may be discharged from service for reasons of physical or mental incapacity or continued ill-health certified by a registered medical practitioner.

(2) If a worker who has completed not less than one year of continuous service is so discharged, he shall be paid by the employer compensation at the rate of thirty days wages for every completed year of service, or gratuity, if any, whichever is higher.

23. Punishment for conviction and misconduct : (1) Notwithstanding anything regarding lay-off, retrenchment, discharge and termination of service as provided elsewhere in this Act, a worker may be dismissed without prior notice or pay in lieu thereof if he is —

- (a) convicted for any criminal offence ; or
- (b) he is found guilty of misconduct under section 24.

(2) Any worker is found guilty of misconduct may, instead of being dismissed under sub-section (1), in consideration of any extenuating circumstances, be awarded any of the following punishments, namely:

- (a) removal ;

- (b) reduction to a lower post, grade or scale of paying for a period not exceeding one year ;
- (c) stoppage of promotion for a period not exceeding one year ;
- (d) withholding of increment for a period not exceeding one year ;
- (e) fine ;
- (f) suspension without wages and subsistence allowance for a period not exceeding seven days;
- (g) censure and warning.

(3) A worker who is dismissed under sub-section (1) or removed as a measure of punishment under sub-section (2)(a) shall, if his continuous service is not less than one year, be paid by the employer compensation at the rate of fourteen days wages for every completed year of service, or gratuity, if any, whichever is higher ;

Provided that no compensation shall be payable if the worker is dismissed for misconduct as specified in sub-section (4) (b).

(4) The following acts and omissions shall be treated as misconduct—

- (a) willful insubordination or disobedience, whether alone or in combination with others to any lawful or reasonable order of a superior ;
- (b) theft, fraud or dishonesty in connection with the employer's business or property ;
- (c) taking or giving bribe in connection with his or any other worker's employment under the employer ;
- (d) habitual absence without leave or absence without leave for more than ten days ;
- (e) habitual late attendance ;
- (f) habitual breach of any law or rule or regulation applicable to the establishment ;
- (g) riotous or disorderly behavior in the establishment, or any act subversive of discipline ;
- (h) habitual negligence work ;
- (i) habitual breach of any rule of employment, including conduct or discipline, approved by the Chief Inspector ;
- (j) falsifying, tampering with, damaging or causing loss of employers official records.

(5) If a worker who is dismissed from service under sub-section (1) (a), is acquitted on an appeal, he will be reinstated to his original post without back wages or to any new post suitable to him ; and if such reinstatement is not possible, he shall be paid compensation at the rate payable to a person on discharge excluding the compensation already paid to him for his dismissal.

24. Procedure for punishment.— (1) No order of punishment under section 23 shall be made against a worker unless—

- (a) the allegations against him are lodged in writing ;
- (b) he is given a copy thereof and not less than seven day's time to explain ;
- (c) he is given an opportunity of being heard ;
- (d) he is found guilty, after enquiry ;
- (e) the employer or the manager approves of such order.

(2) A worker charged for misconduct may be suspended pending enquiry into the charges against him and unless the matter is pending before any Court, the period of such suspension shall not exceed sixty days ;

Provided that during the period of such suspension, a worker shall be paid by his employer a subsistence allowance equivalent to half of his average wages, and dearness allowance and ad-hoc or interim pay, if any.

CHAPTER: IX
WORKING HOURS AND LEAVE

100. Daily working hours : No adult worker shall ordinarily be required or allowed to work in an establishment for more than eight hours in any day:

Provided that, subject to the provisions of section 108, any such worker may work in an establishment not exceeding ten hours in any day.

101. Interval for rest or meal : Any worker in any establishment shall not be liable to work either—

- (a) for more than six hours in any day unless he has been allowed an interval of at least one hour during that day for rest or meal ;
- (b) for more than five hours in any one day unless he has been allowed an interval of at least half an hour during that day for rest or meal ; or
- (c) for more than eight hours unless he has had an interval under clause (a) or two such intervals under clause (b) during that day for rest or meal.

102. Weekly working hours : (1) No adult worker shall ordinarily be required or allowed to work in an establishment for more than forty-eight hours in any week.

(2) Subject to the provisions of section 108, an adult worker may work for more than forty-eight hours in a week:

Provided that the total hours of work of an adult worker shall not exceed sixty hours in any week and on the average fifty-six hours per week in any year:

Provided further that in the case of a worker employed in an establishment which is a road transport service, the total hours or overtime work in any year shall not exceed one hundred and fifty hours.

Provided further that the Government, if satisfied that in public interest or in the interest of economic development such exemption or relaxation is necessary, in certain industries, by order in writing under specific terms and conditions, may relax the provision of this section or exempt, for a maximum period of six months, from the provision of this section at a time.

103. Weekly holiday : An adult worker employed in an establishment —

- (a) which is a shop or commercial establishment, or industrial establishment, shall be allowed in each week one and half days holiday and in factory and establishment one day in a week;
- (b) which is a road transport service, shall be allowed in each week one day's holiday of twenty four consecutive hours ; and no deduction on account of such holidays shall be made from the wages of any such worker.

104. Compensatory weekly holiday : Where, as a result of the passing of an order or the making of a rule under the provisions of this Act exempting an establishment or the workers therein from the provisions of section 103, a worker is deprived of any of the weekly holidays provided for in that section, he shall be allowed, as soon as circumstances permit, compensatory holidays, of equal number to the holidays so deprived of.

105. Spread over : The periods of work of an adult worker in an establishment shall be so arranged that, inclusive of his interval for rest or meal under section 101, it shall not spread over more than eleven hours, and subject to such conditions as may be imposed by the Government, either generally or in the case of any particular establishment.

106. Night Shift : Where, an adult worker in an establishment works on a shift which extends beyond midnight :

- (a) for the purposes of section 103 a holiday for a whole day shall mean in his case a period of twenty-four consecutive hours beginning from the end of his shift ; and
- (b) the following day for him shall be deemed to be the period of twenty-four consecutive hours beginning from the end of this shift and the hours he has worked after midnight shall be counted towards the previous day.

107. Restriction on cumulative hours of work on a vehicle : No worker shall work or be allowed to work on a vehicle or two or more vehicles in excess of the period during which he may be lawfully employed under this Act.

108. Extra-allowance for overtime : (1) Where a worker works in an establishment on any day or week for more than the hours fixed under this Act, he shall, in respect of overtime work, be entitled to allowance at the rate of twice his ordinary rate of basic wage and dearness allowance and ad-hoc or interim pay, if any.

(2) Where any worker in an establishment are paid on a piece rate basis the employer, in consultation with the representatives of the workers, may, for the purposes of this section, fix time rates as nearly as possible equivalent to the average rates of earnings of those workers, and the rates so fixed shall be deemed to be the ordinary rates of wages of those workers.

(3) The Government may prescribe registers to be maintained in an establishment for the purpose of securing compliance with the provisions of this section.

109. Limitation of hours of work for women : No women shall, without her consent, be allowed to work in an establishment between the hours of 10.00 p.m. and 6.00 a.m.

110. Restriction on double employment : No adult worker shall be employed or allowed to be employed for work in more than one establishment on any day, except on permission in writing from the Chief Inspector on such terms and conditions as he may impose.

111. Notice of periods of work for adults and preparation thereof : (1) There shall be displayed and correctly maintained in every establishment in accordance with the provisions of section 337, a notice of periods of work for adult workers showing clearly the periods which adult workers may be required to work.

(2) The periods shown in the notice shall be fixed beforehand in accordance with the provisions of this section and shall be such that workers working during periods would not be working in contravention of the provisions of sections, 100, 101, 102, 103 and 105.

(3) Where all the adult workers in an establishment are required to work during the same period, the employer, shall fix those periods generally.

(4) Where all the adult workers in an establishment are not required to work during the same periods, the employer, shall classify them into groups according to the nature of their work, and indicate the number of workers in each group.

(5) For each group which is not required to work on a system of shifts, the employer shall fix the period during which the group may be required to work.

(6) Where any group is required to work on a system of shifts, and the relays are not on a undetermined periodical changes, the employer shall fix the periods during which each relay on the group may be required to work.

(7) Where any group is to work on a system of shifts and the relays are or are intended to be subject to predetermined periodical changes of shifts, the employer, shall draw up a scheme of shifts, where under the periods during which any relay of the group may be required to work on the relay which will be working at any time of the day shall be known for any day.

(8) A copy of the notice shall be sent in duplicate to the Inspector before the day on which an establishment begins work, for approval of the periods of work by the Inspector.

(9) The Inspector shall return a copy of the notice to the employer within one week of its receipt, indicating modifications if any; the employer shall immediately comply with the modifications, if made and shall preserve the approval in the records of the establishment.

(10) Any proposed change in the system of work in an establishment which will necessitate a change in the notice shall be notified to the Inspector in duplicate before the change is made, and, except with the previous sanction of the Inspector, no such change shall be made.

(11) An employer may refuse to employ a worker for any day if on that day he turns up for work more than half an hour after the time fixed for the commencement of the days work.

112. Special age limit for Road Transport Service worker : (1) No person shall be employed as driver, in an establishment which is a road transport service unless he has attained the age of twenty one years.

(2) No person shall be employed in an establishment which is a road transport service in any other post unless he has attained the age of eighteen years.

113. Hours of work to correspond with notice and register : No adult worker shall be required or allowed to work otherwise than in accordance with the notice under section 111(1) and the entries made beforehand against his name in the register maintained under section 9.

114. Closure of shops, etc. : (1) Every establishment which is shop or commercial or industrial establishment shall remain entirely closed for at least one and a half day in each week.

(2) The one and half day on which establishments shall remain entirely closed, shall be fixed for each area by the Chief Inspector.

Provided that the Chief Inspector may, from time to time, re-fix such day for each area in the public interest.

(3) No shop shall on any day remain open after the hours of 8.00 o'clock *post meridiem* :

Provided that any customer who was being or was waiting in the shop to be served at such hour, may be served during the period of thirty minutes immediately following such hour:

(4) The Government may, on consideration of special circumstances, alter, by notifications in the official Gazette, the closing hours of shops in any area in any season on such conditions as may be imposed.

(5) The provisions of this section shall not apply to—

- (a) docks, wharves or stations and terminal offices of transport services including airports ;
- (b) shops dealing mainly in any vegetable, meat, fish, dairy products, bread, pasties, sweetmeats and flowers ;
- (c) shops dealing mainly in medicines, surgical appliances, bandages or other medical requisites ;
- (d) shops dealing in articles required for funerals, burials or cremation ;
- (e) shops dealing mainly in tobacco, cigars, cigarettes, biris, pan, liquid refreshments, newspapers or periodicals sold retail for consumption in the premises, ice ;

- (f) petrol pumps for the retail sale of the petrol and automobile service stations not being repair workshops ;
- (g) barbers' and hair dressers' shops ;
- (h) any system of public conservancy or sanitation,
- (i) any industry, business or undertaking which supplies power, light or water to the public;
- (j) clubs, hotels, restaurants, catering houses cinemas or theatres:

Provided that where several trades or business are carried on in the same shop or commercial establishment and, the majority of them, by their nature, are eligible to exemption under this section, the exemption will apply to the entire shop or commercial establishment:

Provided further that the Chief Inspector may, by a general or special order, published in the official Gazette, fix the opening or closing hours for any of the foregoing establishments or class of establishment.

115. Casual leave : Every worker shall be entitled to casual leave the full wages for ten days in a calender year, and such leave shall not be accumulated and carried forward to the succeeding year:

Provided that nothing in this section shall apply to a worker employed in a tea plantation.

116. Sick leave : (1) Every worker other than a newspaper worker, shall be entitled to sick leave with full wages for fourteen days in a calender year.

(2) Every newspaper worker shall be entitled to sick leave with half wages for not less than one-eighteenth of the period of services.

(3) No such leave shall be allowed unless a registered medical practitioner appointed by the employer or, if no such medical practitioner is appointed by the employer, any other registered medical practitioner, after examination, certifies that the worker is ill and requires sick leave for cure or treatment for such period as may be specified by him.

(4) Such leave shall not be accumulated and carried forward to the succeeding year.

117. Annual leave with wages : (1) Every adult worker, who has completed one year of continuous service in an establishment, shall be allowed during the subsequent period of twelve months leave with wages for a number of days calculated at the rate of one day—

- (a) in the case of a shop or commercial or industrial establishment or factory or road transport service, for every eighteen days of work ;
- (b) in the case of tea plantation, for every twenty two days of work ;
- (c) in the case of a newspaper worker, for every eleven days of work.

(2) Every worker, who is not an adult, who has completed one year of continuous service in an establishment, shall be allowed during the subsequent period of twelve months leave with wages for a number of days calculated at the rate of one day—

- (a) in the case of a factory, for every fifteen days of work ;
- (b) in the case of a tea plantation, for every eighteen days of work ;
- (c) in the case of a shop or commercial or industrial establishment, for every fourteen days of work performed by him during the previous period of twelve months.

(3) A period of leave allowed under this section shall be inclusive of any holiday which may occur during such period.

(4) If a worker does not, in any period of twelve months, take the leave to which he is entitled under sub-sections (1) or (2), either in whole or in part, any such leave not taken by him shall be added to the leave to be allowed to him, in the succeeding period of twelve months.

(5) Notwithstanding anything contained in sub-section (4), an adult worker shall cease to earn any leave under this section, when the earned leave due to him amounts to—

- (a) in the case factory or road transport service, forty days ;
- (b) in the case of a tea plantation or shop or commercial or industrial establishment, sixty days;

(6) Notwithstanding anything contained in subsection (4) an adolescent worker shall cease to earn any leave under this section, when the earned leave

- (a) in the case of a factory or tea plantation, sixty days ;
- (b) in the case of a shop or commercial or industrial establishment, eighty days :

(7) Any leave applied for by a worker but refused by the employer for any reason, shall be added to the credit of such worker beyond the aforesaid limit mentioned in sub-section (5) and (6).

(8) For the purpose of this section a worker shall be deemed to have completed a period of continuous service in an establishment notwithstanding any interruption in service during that period due to —

- (a) any holiday ;
- (b) any leave with wages ;
- (c) any leave with or without wages due to sickness or accident ;
- (d) any maternity leave not exceeding sixteen weeks ;
- (e) any period of lay-off ;
- (f) a strike which is legal or a lock-out which is not illegal.

118. Festival holidays : (1) Every worker shall be allowed in a calender year eleven days of paid festival holidays.

(2) The days and dates for such festivals shall be fixed by the employer in such manner as may be prescribed.

(3) A worker may be required to work on any festival holiday, but two days' additional compensatory holidays with full pay and a substitute holiday shall be provided for him in accordance with the provisions of section 103.

119. Calculation of wages and payment during leave or holiday period : (1) For the leave or holidays allowed to a worker under the provisions of this Act, he shall be paid at the rate equal to the daily average of his full time wages including dearness allowances, and ad-hoc or interim pay, if any, for the days on which he worked during the month immediately preceding this leave but excluding any overtime allowance and bonus:

Provided that if a worker in any establishment is entitled to cash equivalent of any advantage accruing from the supply of food grains, it shall be included in his wages.

(2) A worker who has been allowed annual leave for a period of not less than four days in the case of an adult and five days in the case of an adolescent, at any time, shall, in so far as it is practicable, be paid his wages for the period of the leave so allowed, before his leave begins.